

CITY OF CHEYENNE – CITY COUNCIL AGENDA ITEM SHEET

DATE OF COUNCIL MEETING: July 14, 2014

TYPE OF DOCUMENT: (☐ ORDINANCE) (☐ RESOLUTION) (☐ PRELIMINARY PLAT/
PRELIM PUD ZONE CHANGE) (☐ LEASE/CONTRACT) (☒ CHANGE ORDER/CONTRACT
MODIFICATION) (☐ CONSIDER BID) (APPLICATIONS/LICENSES/PERMITS)
(APPOINTMENTS) (☐ ANNOUNCEMENTS/REPORTS/MOTIONS) (☐ OTHER)

SPONSORs: (ORDINANCE OR RESOLUTION) _____

EXACT WORDING FOR AGENDA: Contract Modification No.1 to Contract #5927 between the
City of Cheyenne, Parks and Recreation Department and AVI for the engineering design of Polk
Avenue Greenway Connector.

CONTACT PERSON: Jeff Wiggins PHONE: 638-4379 DEPT: P & R Admin

OTHER CITY DEPARTMENT AFFECTED: _____

OTHER GOV'T AGENCIES AFFECTED: N/A

FINANCIAL IMPACT PROPOSED OR CONDITIONS WHICH AFFECT CITY: N/A

CONTRACT TERM: N/A STARTING DATE: N/A

	YES	NO	N/A
Is funding budgeted?	☐	☐	☒
Were Bids called for?	☐	☐	☒
Affected parties notified of Council procedure and dates?	☐	☐	☒
Has bond, insurance or other security been arranged?	☐	☐	☒
Have legal descriptions been checked?	☐	☐	☒

Agenda Item approved / reviewed by :

Risk Mgr () City Attorney (☒) Dept. Head (☒)

General Comments: _____

=====

Submitted by: Jeff Wiggins Title: Trails Coordinator Date: July 8, 2014

UPON PASSAGE OF THE AGENDA ITEM, COPIES SHOULD BE SENT TO:

City Clerk's Office

CITY OF CHEYENNE
CONTRACT MODIFICATION

Approved as to
form only:

P. White

Date: *July 1, 2014*

Contract Modification: #1
Project: Polk Avenue Greenway
Project Number: Contract #5927
Contractor: AVI
Date Prepared: 6/27/2014

The above reference contract is hereby modified in the manner set forth in the following and such amendments and modifications are agreed to by the undersigned, being parties to this contract and agreement. All other aspects of the agreement remain unchanged and in full force and effect.

I. Description of Changes:

Original Contract Amount:	\$ 73,000.00
Modification #1:	\$ 14,000.00
Modification Total	\$ 14,000.00
New Contract Total:	\$ 87,000.00

II. Contract Items:

All items to remain the same as original agreement.

III. Schedule:

The services of this Agreement shall commence on the date stipulated in the "Notice to Proceed" that will be issued by the City. The work shall be completed within sixty (60) calendar days. If the work has not been completed within the time stipulated above, including any extensions of time issued by the City for excusable delays, the Contractor and his sureties shall pay the City fixed, agreed liquidated damages, as stipulated in the Supplemental Conditions, for each calendar day of delay until the work is completed.

IV. Summary:

Engineering redesign for storm water runoff.

V. Approvals

Date: _____

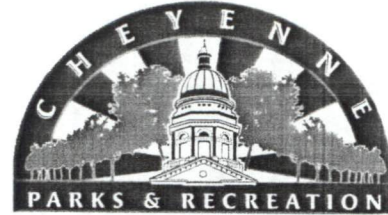
City of Cheyenne

Mayor Richard L. Kaysen

/_____
/ATTEST: City Clerk Carol Intlekofer

Recommend Approval by Parks and Recreation Director

MEMO



To: Governing Body
From: Jeff Wiggins, Trails Planner
cc: Dan White, City Attorney
Date: June 30, 2014
Re: Contract Modification #1 to City Contract #5927

Contract #5927 between the City of Cheyenne and AVI, PC was signed November 26, 2012. It includes engineering design services (\$52,065) and construction management (\$20,375) of the Polk Avenue Greenway project for a total of \$72,440. As a result of the complications outlined in the April 17 AVI memo, an initial bill of \$21,658.75 was submitted to the City to cover addition design services. Upon further discussion, Parks & Recreation and AVI came to a mutual agreement to split the difference. The Invoice dated June 27 covers the additional design services required to get the plan set to bid. It represents the final bill in the design phase of this project. The construction phase is now underway and the AVI contract remains in effect for construction observation until completion of the construction phase.

Please let me know of any questions, concerns or clarification.



April 17, 2014
2-3425.12

Mr. Jeff Wiggins, Project Manager
City of Cheyenne
Parks & Recreation Department
2101 O'Neil Ave, Room 302
Cheyenne, WY 82001

**RE: Polk Avenue Greenway
Contract Modification Request**

Dear Jeff,

Enclosed for your review and consideration is Contract Modification Request #1 along with accompanying documentation for the above referenced project. Additionally, as per your request, we have enclosed a detailed summary as of the last billing on February 10, 2014.

If you have any questions or require additional information, please contact our office.

Respectfully submitted,

AVI Professional Corporation

A handwritten signature in black ink, appearing to read 'R. Scott Cowley'.

R. Scott Cowley, P.E.
Principal-in-Charge, Vice-President
tdc

D.C. Mr. Rob Geringer, PE, City of Cheyenne
Mr. Don Beard, Public Works Director Laramie County

H:\3425 Polk Ave Greenway Survey & Engineering\Corres\20140123_Additional Professional Services.Docx

**Contract Modification No. 1
to Professional Services Agreement Dated November 26, 2012
City Contract # 5927**

Date April 17, 2014
Project No. 3425.12
By T. Cobb

CLIENT

City of Cheyenne Parks and Recreation
Department
Jeff Wiggins, Project Manager
2101 O'Neil Avenue, Room 302
Cheyenne, WY 82001
(P) 307.638.4379

CONSULTANT

AVI, Professional Corporation
1103 Old Town Lane
Cheyenne, Wyoming 82009
(P) 307.637.6017

JOB DESCRIPTION AND LOCATION

Polk Avenue Greenway Segment. The primary purpose of the project was to develop the design for 1250' of Greenway along Polk Avenue. The project will fill in a missing one-quarter mile segment of Greenway located along Polk Avenue in east Cheyenne. This segment was identified as a top Greenway priority in the Cheyenne Area On-Street Bicycle Plan and Greenway Plan Update, adopted in August 2012. The intent of the City of Cheyenne was to ensure that the Polk Avenue roadway was paved following the installation of the Greenway path.

Four primary factors have affected the originally anticipated schedule, scope, and fee of the Polk Greenway Project. Those were the following:

- Offsite runoff
- Adjacent property owner negotiations
- Sequencing and coordination of an adjacent commercial project
- Intergovernmental coordination.

Offsite Storm Water Runoff

The Polk Avenue corridor is a downstream route for larger upstream storm runoff drainage areas. Although it was evident from the inception of the project that large basins were upstream of the area of the project, the extent or impact to the Greenway and roadway storm sewer system was not known until after an analysis was complete. Specifically, Exhibit A of City Contract # 5927, page A-5, Drainage Analysis Letter Report outlined the drainage tasks. Item No. 2 stated that AVI would identify "the tributary basin areas of the approach culverts, roadway ditches, and roadway crossing culverts within the proposed pathway." However, Item No. 3 stated that "No analysis of any offsite culverts, storm drains, or subdivision drainage elements has been included in this scope of services." Details began to emerge

during the design and city review process which revealed the impact of offsite runoff to the Polk Greenway project was larger than originally anticipated. Consequently, offsite analysis of culverts and subdivision drainage elements were required by the City of Cheyenne to design the storm sewer conveyance elements of the Polk Avenue Greenway Project. Additional and expanded tasks were required beyond the scoped Drainage Analysis Letter Report including: Drainage Analysis Report, hydraulic design, offsite hydrology, coordination, storm sewer analysis, topographic survey and physical data collection, and onsite reviews.

Adjacent property owner negotiations

Although negotiation was anticipated in the original scope under the Resident/Neighborhood Meetings task, additional meeting time and coordination was necessary to complete the project. Two primary land owners on the east side of the project were the key to the success of the Greenway Path installation. The first was Dennis Steele (Tract 129, Sunnyside Addition, Fifth Filing) and Doug Walker (Lot 1 - 3, Polk Addition, First Filing).

Sequencing and coordination of an adjacent commercial project

The potential Greenway path and roadway construction project spurred interest in development of an adjacent lot by a local investment group. As both the Greenway and commercial projects evolved, a unique opportunity was created for a private and public partnership that provided mutual benefits. The parcel is known as Polk Addition, First Filing or the Polk Commercial Development.

After a lengthy coordination and platting process, the landowner of the commercial property, WC Investments, Inc. (i.e. Doug Walker) recorded a plat which donated 5' of additional right-of-way and established a 20' permanent drainage and utility easement along the east side of the right-of-way. Furthermore, accompanying the development public wet utilities (i.e. water and sewer) were designed and constructed in the Polk Avenue right-of-way. The coordination and proper construction sequencing of the commercial development with the Greenway project provides the following benefits to both the City of Cheyenne and the developer which included:

- Eliminating the major conflicts between a greenway contractor and the commercial developers contractor
- Provided cost savings to both owners by eliminating contractor conflicts
- Established 5' of additional right-of-way for development of a tree lawn/ separation area between the greenway path and the roadway
- Coordinated design and installation of public water and sewer mains within the Polk Avenue right-of-way which potentially expands the BOPU service area and fire protection capability for residents on Polk Avenue and Cheyenne Street.

The designs were optimized and coordinated because the same engineering firm was utilized for each of these projects. However, the timing of the project designs adversely impacted the schedule and scope of the Polk Avenue Greenway project. Unfortunately, this impact would have occurred regardless of whether or not the projects were designed independently or by the same engineering firm. This was due to the fact the Greenway Project design began prior

to the design of the Polk Commercial project. Design elements on the Polk Greenway project like the roadway profile, storm sewer layout and profile were completed with assumptions for a future alignment and depth of a sanitary sewer and water main. The developer did not move forward with his commercial design project until after the Polk Greenway Project was over sixty-five (65%) complete. The water and sewer horizontal and vertical alignment assumptions were based on engineering standard of practice but, did not meet the final commercial developer's needs. Consequently, the final design of the Greenway Project storm sewer was adjusted to avoid conflicts with storm pipe, manholes, sanitary manholes, inlets, and appurtenances.

Intergovernmental Coordination

The potential Greenway path construction and roadway design project generated interest by the County in paving the north portion of Polk Avenue in conjunction with the Greenway Project. The project provided the opportunity for the County and the City of Cheyenne to combine financial resources and create the potential for an enhanced roadway construction project in conjunction with the Greenway pathway Project. However, with this opportunity came additional complexity due to the differences in the requirements for typical sections for County versus the City of Cheyenne, as well as, additional detail required for construction quantity breakout between the City of Cheyenne, and Laramie County.

Additional meeting time, coordination, quantity analysis, and cost estimate iterations were necessary to facilitate the the intergovernmental agreement and the "typical roadway section which satisfied the requirements of the County and the City.

ADDITIONAL SCOPE OF SERVICES

Although the offsite runoff and adjacent property owner negotiations were scoped in the original contract, the time required far exceeded that scoped for those services. Additionally, the sequencing and coordination with the adjacent commercial property and the intergovernmental agreement time were not professional services part of the original contract. Therefore, we respectively request the following modifications to the original contract:

Expanded Tasks

Task 1 – Predesign/ Survey

1. Surveyed residential and miscellaneous building finished floor elevations on the west side of Polk Avenue from Cheyenne Street to U.S. 30.
2. Collected additional field topographic survey data for offsite culvert horizontal location, elevation, pipe type, and roadway cross sectional embankment data for culvert capacity analysis.
3. Additional coordination with Cheyenne Light, Fuel, and Power regarding relocation of overhead power poles, and underground natural gas line.

4. Typical section development to fulfill the City of Cheyenne and Laramie County requirements including: Cross slope versus crown, lane widths, cross sectional component modifications necessary, meeting, facilitation, and exhibit preparation.

Task 3 – Drainage Analysis Letter Report

1. A majority of this offsite runoff is controlled by roadway embankment and drainage structures designed and constructed by the Wyoming Department of Transportation (i.e. WYDOT). Coordination, meeting, and data collection of contributory offsite drainage basins, culverts, and existing restrictor plate on U.S. 30 from WYDOT. In addition AVI obtained hydraulic data on previous WYDOT projects affecting this project.

AVI participated in two (2) one-on-one meetings, phone conversations, email correspondence and plan archive research to gather the offsite data need for the final design and analysis.

2. Developed an offsite tributary basin exhibit, U.S. 30 Culvert capacity summary, U.S. 30 culvert report and analysis, offsite basin hydrographs were developed to analyze offsite runoff adjacent to the Polk Avenue roadway.

3. Provided additional drainage analysis, basin delineation, and letter reporting required modifications to address roadway detention requirements for the recommended roadway improvements.

4. Participated in additional meetings with Parks and Recreation and City of Cheyenne Engineering to review drainage comments and revision.

5. Onsite review of regional basins and physical conveyance structures.

6. Additional hydraulic analyses of the storm sewer system, hydraulic grate capacity calculations.

Task 4 – Resident/ Neighborhood Meetings

1. **Tract 129, Sunnyside Addition, Fifth Filing**

In order to secure a temporary construction/ slope easement for the construction of the Greenway Pathway, (8) eight meetings and coordination time were required to address the following topics:

- Fence type, location, and size
- Gate location and size
- Fill slopes
- Landscape Planter
- Special seeding in pasture and residence
- Historic overall drainage

- Ownership of existing culverts
- Size of approach
- Greenway signage
- Roadway signage
- In depth review of proposed drainage conveyance improvements
- In depth review of historic drainage conveyance structures and maintaining historic pattern within the property
- Construction Plan review.

The temporary construction/ slope easement provided significant construction cost savings by eliminating the need for a retaining wall construction/ design along a majority of the property.

2. **Lot 1-3, Polk Addition, First Filing**

In order to secure a 20' permanent drainage easement for the conveyance of offsite storm runoff through the Polk Avenue Greenway Project, additional meetings and coordination time were required to address the following topics:

- Historic overall drainage
- In depth review of proposed drainage conveyance improvements
- Review, revise, and develop ditch alternatives

The permanent drainage easement saved the tax payers significant construction costs by allowing offsite runoff from the southwest to be conveyed on the surface rather than in underground piping.

Task 5 – Final Design

1. Cross slope versus crown typical section development and lane width modifications necessary to fulfill the City of Cheyenne and Laramie County requirements.
2. Additional fill slope, profile, and horizontal alternatives required to satisfy the requirements of the adjacent property owner on Tract 129, Sunnyside Addition, Fifth Filing.
3. Landscape planter details/ alternatives required to facilitate and accommodate the adjacent property owner on Tract 129, Sunnyside Addition, Fifth Filing.
4. Modification/ adjustments of the storm sewer conveyance elements to accommodate the water and sanitary sewer design of the Polk Commercial project.
5. Modifications/ adjustments of the storm sewer conveyance elements to accommodate the 100 year offsite storm runoff.
6. Refinements and expansion of the channel design on Cheyenne Street to accommodate detention and offsite run-off bypass flow.

7. Address City of Cheyenne related to the expanded drainage requirements for offsite storm runoff to convey.
8. Expanded quantity breakdown and summaries to separate Laramie County, City of Cheyenne, and WC Investments, LLC.

Additional Tasks

Task ADD #1 – Intergovernmental Agreement Coordination

1. Developed cost estimates and quantity iterations for use to facilitate the requirements of the intergovernmental and private party cost sharing agreements.
2. Attended additional meetings between the City of Cheyenne, Laramie County, and WC Investments, LLC for the project funding and agreement development.

SUMMARY OF ADDITIONAL PROFESSIONAL SERVICE FEES

<u>Description/ Task</u>	(1) <u>Overrun/ (Underrun)</u>	(2) <u>Requested Amount</u>
Task 1 – Predesign/ Survey	\$7,828.30	\$6,776.75
Task 2 – Preliminary Street Section Designs	-\$8,433.50	-
Task 3 – Drainage Analysis/ Storm Sewer Design	\$6,499.25	\$6,499.25
Task 4 – Resident/ Neighborhood Meeting	\$295.00	\$295.00
Task 5 – Final	\$16,396.25	\$5,112.75
Task 6 – ROW/ Easement Preparation Negotiations	NC	
Task 7 – Bidding Services	-	
<u>Additional Tasks</u>		
Add#1 – Intergovernmental Coordination	\$2,975.00	\$2,975.00
Totals	\$25,560.30	\$21,658.75

Footnotes:

- (1) Depicts actual cost of completed tasks. Overrun is a positive number (i.e. \$X,XXX.XX) and Underrun is negative (i.e. -(\$X,XXX.XX)). "NC" – Not complete task in process.
- (2) Contract modification requested amount.

Total (Cost Not to Exceed) for Additional Professional Services Described Above: \$21,658.75.

All terms and conditions of the contract dated November 26, 2012 remain in full force and effect.

CLIENT AUTHORIZATION:

AVI, P.C. AUTHORIZATION:

Signature

Signature

Printed Name

Printed Name

Title

Title

April 17, 2014

Task	Description	\$125.00		\$100.00		\$85.00		\$70.00		\$55.00		\$60.00		\$69.00		\$40.00		\$115.00		TOTALS	CONTRACT AMOUNT	OVERRUN/UNDERRUN												
		Senior Principal		Principal Engineer		Registered Engineer		Engineer		PLS		Survey Technician		Technician I		Clerical		2 - Main Survey Crew																
		Hrs.	\$	Hrs.	\$	Hrs.	\$	Hrs.	\$	Hrs.	\$	Hrs.	\$	Hrs.	\$	Hrs.	\$	Cost	Cost															
Task 1	Preliminary Survey		\$	-	7	\$	700.00	\$	-	-	\$	-	\$	-	\$	-	3.5	\$	140.00	\$	840.00													
		2	\$	250.00	27	\$	2,700.00	61	\$	5,165.00	3.5	\$	245.00	1	\$	66.00	\$	-	\$	-	\$	6,533.00												
			\$	-	10.5	\$	1,050.00	4	\$	340.00	1	\$	70.00	7	\$	595.00	2.5	\$	170.00	1.25	\$	86.25	\$	1,552.50										
			\$	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	\$	3,963.75											
	Sub-total	2	\$	250.00	44.5	\$	4,450.00	65	\$	5,525.00	4.5	\$	315.00	8	\$	680.00	3.5	\$	238.00	1.25	\$	86.25	3.5	\$	140.00	12.5	\$	1,552.50	\$	13,236.75	\$	6,500.00	\$	6,736.75
Task 2	Preliminary Street Section Designs		\$	500.00	1.5	\$	150.00	47.5	\$	4,037.50	23.5	\$	1,645.00	0.5	\$	42.50	\$	-	7.25	\$	500.25	4	\$	160.00	\$	-	\$	7,035.25	\$	-	\$	7,035.25		
			\$	-	1.5	\$	150.00	21.25	\$	1,606.25	1	\$	70.00	\$	-	\$	-	\$	-	\$	-	\$	-	\$	-	\$	2,026.25	\$	-	\$	2,026.25			
			\$	500.00	3	\$	300.00	68.75	\$	5,843.75	24.5	\$	1,715.00	0.5	\$	42.50	\$	-	7.25	\$	500.25	4	\$	160.00	\$	-	\$	9,615.50	\$	17,485.00	\$	(8,431.50)		
			Sub-total	4	\$	500.00	3	\$	300.00	68.75	\$	5,843.75	24.5	\$	1,715.00	0.5	\$	42.50	\$	-	7.25	\$	500.25	4	\$	160.00	\$	-	\$	9,615.50	\$	17,485.00	\$	(8,431.50)
Task 3	Detailed Analysis of Storm Sewer Design		\$	375.00	2	\$	200.00	52.25	\$	4,441.25	30	\$	2,100.00	\$	-	1	\$	68.00	\$	-	\$	-	3.5	\$	402.50	\$	-	\$	7,586.75	\$	-	\$	7,586.75	
			3	\$	375.00	2	\$	200.00	52.25	\$	4,441.25	30	\$	2,100.00	\$	-	1	\$	68.00	\$	-	\$	-	3.5	\$	402.50	\$	-	\$	7,586.75	\$	-	\$	7,586.75
			\$	-	5.5	\$	550.00	15	\$	1,275.00	\$	-	\$	-	\$	-	\$	-	\$	-	\$	-	\$	-	\$	-	\$	900.00	\$	-	\$	2,725.00		
			Sub-total	3	\$	-	5.5	\$	550.00	15	\$	1,275.00	\$	-	\$	-	\$	-	\$	-	\$	-	\$	-	\$	-	\$	900.00	\$	-	\$	2,725.00	\$	(555.00)
Task 5	Final Design		\$	-	17.5	\$	1,750.00	137.25	\$	11,666.25	42.5	\$	2,975.00	\$	-	\$	-	8.5	\$	340.00	\$	-	\$	-	\$	-	\$	16,731.25	\$	-	\$	-	\$	-
			\$	-	17.5	\$	1,750.00	137.25	\$	11,666.25	42.5	\$	2,975.00	\$	-	\$	-	8.5	\$	340.00	\$	-	\$	-	\$	-	\$	16,731.25	\$	-	\$	-	\$	-
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Task 6	ROW Easement Exhibit/ Negotiations		\$	-	-	\$	-	-	\$	-	-	\$	-	\$	-	\$	-	\$	-	\$	-	\$	-	\$	-	\$	-	\$	-	\$	-	\$	-	
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Task 7	Bidding Services		\$	-	-	\$	-	-	\$	-	-	\$	-	\$	-	\$	-	\$	-	\$	-	\$	-	\$	-	\$	-	\$	-	\$	-	\$	-	
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Construction Administration	General Office / RE Construction Observation		\$	-	-	\$	-	-	\$	-	-	\$	-	\$	-	\$	-	\$	-	\$	-	\$	-	\$	-	\$	-	\$	-	\$	-	\$	-	
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TOTAL		9	\$	1,125.00	77.5	\$	7,250.00	338.25	\$	27,937.50	181.5	\$	7,105.00	8.5	\$	722.50	4.5	\$	331.50	16	\$	648.00	17	\$	1,955.00	\$	3,219.75	\$	52,059.00	\$	20,375.00	\$	(20,375.00)	